

24STCV00681 24STCV00681

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Case Number: 24STCV00681 Hearing Date: July 13, 2026 Dept: 731

[TENTATIVE] ORDER RE: PLAINTIFF'S

MOTION TO COMPEL FURTHER DEPOSITION TESTIMONY OF DEFENDANT'S PMQ WITNESS; AND
REQUEST FOR MONETARY SANCTIONS

Background Facts

Plaintiff David Rogers sues

Defendants Equinox Holdings, Inc. ("Defendant Equinox"), Scott Derue, Jaime Murillo, Victoria Engle, and Does 1 through 100 pursuant to a Complaint alleging statutory Fair Employment and Housing Act ("FEHA") and common law claims arising from Plaintiff's employment with Defendant Equinox in West Hollywood, California. The claims specifically arise from allegations that Plaintiff was, among other things, subjected to sexual harassment in the workplace, which Plaintiff reported but was not remedied by Defendants, with Plaintiff ultimately being retaliated against and terminated from his employment.

Before the Court is Plaintiff's May

8, 2026, motion to compel an order for the further deposition of Defendant Equinox's person most qualified ("PMQ") with a request for sanctions. Defendant Equinox filed a June 9, 2026, opposition to Plaintiff's motion, and Plaintiff filed a June 15, 2026, reply.

Motion to Compel

Deposition

The Court DENIES both Plaintiff's

motion and request for sanctions because both seek relief beyond the applicable fact-discovery cutoff in this action, set forth by the Court in its September

3, 2025, order partially granting an ex parte application filed by Plaintiff to continue trial and related deadlines in this action.

Specifically, on September 3, 2025, the Court ordered that:

(1) The trial was continued to July 6, 2026;

(2) The final status conference was continued to June 26, 2026;

(3) The fact discovery cut-off for this action “shall remain September 26, 2025, except that discovery served by the parties prior to today’s date may proceed through the end of 2025”; and

(4) All other litigation deadlines would be based on the new trial date.

(9/3/2025 Minutes, p. 1.)

Defendant Equinox rightly notes in its opposition that because the PMQ deposition here was not noticed prior to September 3, 2025, the applicable fact discovery cut-off date was September 26, 2025, for which reason Plaintiff’s motion must fail. (Opposition, p. 8.)

While Plaintiff argues in reply that “[t]he PMQ deposition was never cut off” and “Defendant completely ignores the physical reality that PMQ discovery proceeded on a rolling basis precisely because the parties were attempting to carry out the Court’s meet-and-confer mandates,” Plaintiff does not reconcile for the Court how the discovery at issue in Plaintiff’s motion (Motion, Notice of Motion, p. ii) does not fall into the fact cut-off set by the Court on September 3, 2025. The issue is not due diligence, which Plaintiff has clearly shown (see Reply pp. 2-3), but rather, the reality that fact discovery as to a PMQ deposition cut off on September 26, 2025.

Separately, while the parties were and are free to continue voluntary exchanges of information (as happened here,

as shown in Motion, Angelini Decl., ¶¶ 4-11, Exs. 1-4), or to stipulate extensions beyond the Code of Civil Procedure 2024.020 and 2024.030 cut-offs, such stipulations must specify the extended cut-off date in a writing. (Code Civ. Proc., § 2024.060, emphasis in original ["shall be confirmed in a writing"].) The Court has not located any such writing in Plaintiff's moving papers, for which reason no stipulation to continue under section 2024.060 appears before the Court.

And even though under the above circumstances the parties engaged in informal discovery past the September 26, 2025, fact discovery cut-off, under established California authority, that cut-off was neither affected by informal continuation of discovery nor promises of future responses/production beyond the cut-off. (See *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products Inc.* (2008) 165 Cal.App.4th 1568, 1586-1588 (Pelton).) Instead, the party seeking to have a discovery motion heard after the cutoff should have filed a formal motion under section 2024.050 rather than simply continue to exchange discovery informally. (Ibid.) Separately but of note here, the Pelton court rejected an argument that the party on whom discovery was propounded should be estopped from relying on a past discovery cut-off date when that party continued informal exchanges past the cut-off. (Id. at pp. 1585-1586.) Last, the Pelton court held that a trial court abused its discretion in granting a motion to compel after the discovery motion cutoff date when the moving party had not filed a motion to reopen discovery under section 2024.050, because without such a motion there was no record that the court had considered the statutory factors required by that provision. (See id. at pp. 1586-1588.)

Thus, consistent with the above reasoning and authority, Plaintiff's motion and corresponding request for sanctions cannot be granted, and the Court need not consider the other arguments raised by Plaintiff in support of the requested relief.

Plaintiff's motion and request for sanctions are DENIED.

Plaintiff is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative

as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.